

22AVCV00152 22AVCV00152

County: los-angeles

Division: Civil Law and Motion

Department: A14

Hearing date: 2026-08-17

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Case Number: 22AVCV00152 Hearing Date: August 17, 2026 Dept: A14

Salazar v. County of Los Angeles 22AVCV00152

Rulings on Contested Motions in Limine.

The following are the Court's rulings on the parties'

Motions in Limine ("MILs"). Because the following rulings on the motions in limine are based upon evidence known at the present time, these rulings are only tentative and may be subject to change as the evidence unfolds. (See Scott v. C.R. Bard, Inc. (2014) 231 Cal.App.4th 763.) For this reason, all rulings are made without prejudice unless expressly stated otherwise.

Plaintiff's MIL No. 1 PLAINTIFFS' MOTION IN LIMINE NO. 1

TO EXCLUDE DEFENSE WITNESSES, INCLUDING EXPERT WITNESSES, NOT IDENTIFIED IN DISCOVERY

Plaintiff's Position: "In the joint witness list, Defendants

have identified five witnesses not previously identified in discovery, namely:

1. Sgt. Politano 2. Sgt. Goedeck 3. Sgt. Schriever 4. Deputy Diaz 5. Steven A. Lavenda, MD. 6. Gary Igor Pastushenko, MD. California Code of Civil Procedure section 2034.300 mandates exclusion of expert witnesses not properly listed or disclosed. The trial court shall exclude from evidence the expert opinion of any witness offered by any party who has unreasonably failed to list that witness as an expert under section 2034.260, submit an expert witness declaration, produce reports and writings of expert witnesses under section 2034.270, or make that expert available for deposition." (Motion, at 1).

Defense Position: "Sgt.

Politano, Sgt. Goedeck, Sgt. Schriever, and Deputy Diaz are percipient witnesses. There was no need to identify percipient witnesses in the expert witness list. (Code Civ. Proc., § 2034.210.) Dr. Lavenda and Dr. Pastushenko are treating physicians. While not expert witnesses, they too can provide percipient witness testimony. (See *Province v. Center for Women's Health & Family Birth* (1993) 20 Cal.App.4th 1673, 1684 [undisclosed treating physicians can testify to "percipient observations"].)1 (See also Cal. Prac. Guide Pers. Inj. (Rutter Group) § 6:481.3 ["Undesignated experts who were also percipient witnesses to the injury (e.g., treating physicians) may testify in their percipient witness capacity despite the CCP § 2034.300 testimony exclusion bar."].) (Opposition, at 2.)

Ruling: DENIED. Percipient witnesses who are not offering expert opinion testimony need not be designated as non-retained experts. This includes even treating physicians. (*K.M. v. Grossmont Union High Sch. Dist.* (2022) 84 Cal. App. 5th 717.)

PLAINTIFFS' MOTION IN LIMINE NO. 2 TO EXCLUDE ANY DEFENSE REFERENCE TO REPAIR COSTS, PHOTOGRAPHS, DRIVABILITY, OR APPARENT FORCE OF IMPACT AS PROOF AGAINST INJURY.

Plaintiff's position: "The relationship between vehicle damage and occupant injury in a motor vehicle collision is not within the common knowledge of laypersons. While a jury may understand that a collision can cause injury, determining whether a specific level of vehicle damage necessarily correlates with the presence or absence of internal soft-tissue injuries, disc herniations, or other trauma requires specialized knowledge in biomechanics, accident reconstruction, and medical causation." (Motion, at IV.A.)

Defense position: Expert testimony is not required to link automobile damage to the existence and extent of injuries. The Court of Appeal in *Christ v. Schwartz* (2016) 2 Cal.App.5th 440, 449, addressed this very issue and concluded jurors are capable of correlating post-accident vehicle damage with the existence and extent of injuries: . . . 'Juries are entitled to infer that which resides squarely in the center of everyday knowledge: the certainty of proportion, and the resulting recognition that slight force most often results in slight injury, and great force most often is accompanied by great injury.' (Id., at 448.)" (Opposition, at 2-3.)

Ruling: DENIED. (*Christ v. Schwartz* (2016) 2 Cal.App.5th 440, 448-449.)

PLAINTIFFS' MOTION IN LIMINE NO. 3 TO EXCLUDE EVIDENCE OF
PLAINTIFFS' HEALTH INSURANCE OR THAT PLAINTIFFS FAILED TO EXCLUSIVELY USE
HEALTH INSURANCE WITH KAISER.

Plaintiff's Position: The reasonableness of medical expenses is determined by the nature, extent, and necessity of the treatment, and by the prevailing rates for such treatment in the community—not by whether the plaintiff used a particular insurance network. *Audish v. Macias*, (2024) 102 Cal. App. 5th 740. The reasonable value of that treatment is a question for the jury based on expert testimony and evidence of the reasonable cost of such services, not on whether Plaintiff used her Kaiser insurance. Allowing Defendants to argue that Plaintiff "should have" gone to Kaiser would confuse the jury about the proper measure of damages and invite improper speculation about what Kaiser might have charged, whether Kaiser providers would have rendered the same treatment, and whether the treatment. (Motion, at 9.)

Defense position: If Plaintiffs treated at Kaiser, or any medical care provider, and Kaiser accepted payment for the health care services, that is relevant to claimed health care costs. "Where the provider has, by prior agreement, accepted less than a billed amount as full payment, evidence of the full billed amount is not itself relevant on the issue of past medical expenses." (*Howell v. Hamilton Meats & Provisions, Inc.* (2011) 52 Cal.4th 541, 567.) (Opposition, at 2.)

Ruling: GRANTED in part, and DENIED in part.

The parties' briefs appear to talk past each other. Plaintiff's motion appears confined to excluding argument that Plaintiff "should have" gone to Kaiser, and that failure to seek care exclusively from Kaiser demonstrates Plaintiff's lack of mitigation of damages. To the extent Defendant intended to make such arguments, the motion is granted. (*Qaadir v. Figueroa* (2021) 67 Cal.App.5th 790, 809 ("Defendants present no authority for the proposition that Qaadir was required to mitigate his damages by seeking care only within his insurance plan. Instead, it is undisputed he had a right to seek treatment outside of his insurance plan. 'The rule of mitigation of damages has no application where its effect would be to require the innocent party to sacrifice and surrender important and valuable rights.' [Citation.]").)

However, this does not seem to be Defendant's intention.

Rather, Defendant argues that if Plaintiff was treated at Kaiser, the amount Kaiser accepted as payment is relevant to determining, per Howell, the lesser of the reasonableness of the amount of past medical expenses, or the amount actually incurred or paid. (Howell, supra, 52 Cal.4th at 566.) Questioning about the amounts Kaiser actually paid, or accepted as payment for services, is permissible under Howell. (See also Stokes v. Muschinske (2019) 34 Cal.App.5th 45, 56-58 (holding it did not violate collateral source rule for trial court to permit references to Plaintiff's past care at Kaiser and as part of calculation of past and future reasonable medical expenses.)

Defendant's Motions in limine.

DEFENDANTS' MOTION IN LIMINE NO. 2 TO PRECLUDE EVIDENCE OF "BILLED" AMOUNTS OF PAST AND FUTURE HEALTHCARE SERVICES UNDER HOWELL

Defendant's position: The California Supreme Court held that "a plaintiff may recover as economic damages no more than the reasonable value of medical services received." Howell, supra, 52 Cal.4th at p. 555. The bills issued by medical service providers do not reflect the "reasonable value" of medical services received because they grossly exceed what providers actually accept as full payment. Id. at p. 561 "hospital bills have been called 'insincere, in the sense that they would yield truly enormous profits if those prices were actually paid'"; Corenbaum, supra, 215 Cal.App.4th at p. 1326, "the full amount billed by medical providers is not an accurate measure of the value of medical services". (Motion, at 3.)

Plaintiff's position: "The California Supreme Court in Howell addressed only a narrow circumstance: when a plaintiff's private health insurer has contracted with medical providers to accept discounted rates as payment in full, and the plaintiff never incurred liability for the balance. The Howell holding does not apply to uninsured plaintiffs, plaintiffs who remain liable for billed amounts, or situations where the reasonable value of services must be determined by the jury through expert testimony. See Pebley v. Santa Clara Organics, LLC, (2018) 22 Cal. App. 5th 1266, Bermudez v. Ciolek, (2015) 237 Cal. App. 4th 1311."

Ruling: GRANTED
in part, and DENIED in part.

The law provides that unpaid, but incurred, medical bills can be relevant and admissible to proving reasonable medical expenses. "Evidence of unpaid medical bills is relevant to prove or disprove the 'reasonable value' prong of past medical damages if it can show the bill is actually incurred." (Qaadir v. Figueroa (2021) 67 Cal.App.5th 790, 798. See also Bermudez v. Ciolek (2015) 237 Cal.App.4th 1311, 1335 ("The billed amounts are also relevant and admissible with regard to the reasonable value of [Plaintiff's] medical expenses."))

Defendant invokes Howell v. Hamilton Meats & Provisions, Inc. (2011) 52 Cal.4th 541 and Corenbaum v. Lampkin (2013) 214 Cal.App.4th 876 for the proposition that the full amount of medical bills is not admissible for proving the reasonableness of either past or future medical expenses. Howell does not limit recovery only to bills "paid," but rather "a personal injury plaintiff may recover the lesser of (a) the amount paid or incurred for medical services, and (b) the reasonable value of the services." (Howell, 52 Cal.4th at 566; see also at 551 ("A person who undergoes necessary medical treatment for tortiously caused injuries suffers an economic loss by taking on liability for the costs of treatment. Hence, any reasonable charges for treatment the injured person has paid or, having incurred, still owes the medical provider are recoverable as economic damages.")) Corenbaum extends to future damages Howell's holding that the billed amount for medical services is not admissible where the insurer prenegotiates a lower rate for services because in such instances the billed amount is not in fact incurred. (Corenbaum, supra, 215 Cal.App.4th at 1330-1334.) Neither case establishes as a blanket rule that witnesses may not refer to full billed amounts as a basis for opinions regarding reasonable value of medical care. As discussed above, Qaadir and Bermudez expressly hold that billed and incurred amounts can be admissible as part of the basis for determining reasonable value of medical services. (See also Pebley v. Santa Clara Organics (2018) 22 Cal. App.5th 1266, 1269, 1275 ("[W]hen a plaintiff is not insured, medical bills are relevant and admissible to prove both the amount incurred and the reasonable value of [the] medical services provided

Howell and Corenbaum certainly do hold that the full medical bills are not admissible where a lower rate for the bills already has been prenegotiated by an insurer, because where that is the case the bills have not been incurred by the plaintiff.

Considering all of that, the Court holds, as required by Howell and Corenbaum, that the full amount of bills that have been prenegotiated by an insurer to a lower rate are not incurred and therefore not admissible. But as to bills that have not been prenegotiated by an insurer, and a foundation is laid that payment for those bills were incurred by Plaintiff, the Court finds the amount of those bills may be admissible as relevant for determining the reasonable value of medical services.

DEFENDANTS' MOTION IN LIMINE NO. 3 TO EXCLUDE EVIDENCE OF MEDICAL BILLS WITHOUT SHOWING THEY WERE REASONABLE AND NECESSARY

Defendant's position: "The rule is that a plaintiff can only recover for reasonable and necessary charges. "Damages for past medical expenses are limited to the lesser of the (1) the amount paid or incurred for past medical expenses and (2) the reasonable value of those services." (Corenbaum v. Lampkin (2013) 215 Cal.App.4th 1308, 1325-1326.) "To be recoverable in damages, a plaintiff's medical expenses must be both incurred and reasonable." (Id.) . . . Defendants respectfully requests the Court preclude Plaintiffs from introducing any medical, dental or health care related bills, absent such health care provider's testimony the bills were reasonable and necessary." (Motion, at 2.)

Plaintiff's position: "Plaintiffs do not dispute that they must prove both incurrence and reasonable value of medical expenses. But Defendants ask the Court to preemptively exclude all medical bills unless a treating provider testifies in person to reasonableness and necessity. That categorical bar is not required by California law and would deny Plaintiffs the opportunity to present competent evidence through customary means. Medical bills are admissible as business records and as evidence relevant to the nature and extent of injuries, subject to foundational requirements and the Court's discretion under Evidence Code section 352."

Ruling: GRANTED in part, and DENIED in part. As phrased, the Motion in Limine is overbroad as medical bills may be relevant for purposes other than establishing that the medical services associated with them were reasonable and necessary, as Plaintiff points out. As to the wide scope of the order, the Motion is denied. (Kelly v. New West Federal Savings (1996) 49 Cal. App. 4th 659). However, to the extent Plaintiff seeks to introduce medical bills as a measure of damages, the Court agrees that

Plaintiff should first lay a foundation that the bills were in fact paid or incurred.

DEFENDANTS' MOTION IN LIMINE NO. 6 TO EXCLUDE EVIDENCE
NOT IDENTIFIED IN RESPONSES TO DISCOVERY.

Defendant's position: "Evidence from discovery that was not produced for the purposes of the instant litigation is extremely prejudicial, as the jury would have great difficulty in sufficiently segregating the evidence and ascertaining the source of the information and its context or relevance. The evidence would cause confusion as to the issues of the case and likely mislead the jury, requiring an undue consumption of the Court's time."
(Motion, at 3.)

Plaintiff's position: "While a motion in limine can serve the function of a motion to exclude under Evidence Code section 353 by allowing the trial court to rule on a specific objection to particular evidence, a motion in limine must specify exactly what evidence the motion seeks to exclude."

Ruling: DENIED. The particular evidence to be excluded is not identified. (Kelly v. New West Federal Savings (1996) 49 Cal. App. 4th 659). There could conceivably be materials that are not responsive to any discovery request that could become germane at trial, say for impeachment purposes. The Court cannot enter the blanket order sought.

DEFENDANTS' MOTION IN LIMINE NO. 7 TO PRECLUDE PLAINTIFFS
FROM OFFERING "EXPERT" TESTIMONY AND LIMITING ANY PERMITTED TESTIMONY PURSUANT
TO PEOPLE V. SANCHEZ

Defendant's position: With limited exceptions, 'on objection of any party who has made a complete and timely compliance with Section 2034.260, the trial court shall exclude from evidence the expert opinion of any witness that is offered by any party who has unreasonably failed to do any of the following: (a) list that witness as an expert under Section 2034.260; (b) submit an expert witness declaration; (c) produce reports and writings of expert witnesses under Section 2034.270; [or] (d) make that expert available for a deposition under Article 3 (commencing with Section 2034.410).' Here, the designation does not include any facts or opinions that the non-retained experts plan to offer at trial. The designation contains a canned statement

about each non-retained expert stating the doctors treated the Plaintiffs and are 'regarded as percipient witnesses, not persons retained for the purpose of giving expert testimony. Accordingly, plaintiff has not listed his treating health care providers in a declaration, although they will be expected to render expert testimony at the time of trial.'" (Motion, at 4.)

Plaintiff's position: "The defense argument that "Plaintiffs non-retained experts should be precluded from offering "expert" testimony at trial " is not supported by California law. As the California Supreme Court observed in *Schreiber v. Estate of Kiser* (1999) 22 Cal. 4th 31, for a treating physician 'no expert witness declaration is required, and he may testify as to any opinions formed on the basis of facts independently acquired and informed by his training, skill, and experience. This may well include opinions regarding causation and standard of care because such issues are inherent in a physician's work. An opposing party would therefore be prudent to ask a treating physician at his deposition whether he holds any opinions on these subjects, and if so, in what manner he obtained the factual underpinning of those opinions'."

RULING: DENIED, in part, GRANTED in part. As non-retained experts, the treating physicians were not obligated to provide an expert witness declaration. The witnesses may testify consistent with *Schrieber v. Estate of Kiser*, supra, and consistent with their deposition testimony, if any.

As to the portions of the motion concerning Kennemur and Sanchez, the Court will follow the law as stated in that authority.

DEFENDANTS' MOTION IN LIMINE NO. 8 SEEKING TO EXCLUDE EVIDENCE PROVIDED BY EXPERT BASED ON HEARSAY

Defendant's position: "Defendants anticipate at the time of trial, Plaintiffs will elicit testimony on direct examination which will require their experts to testify regarding statements relied upon on in medical records or accident reports. Such evidence, as a matter of law, must be precluded because any such testimony is hearsay. With this motion, Defendants respectfully requests the Court to preclude Plaintiffs' experts from testifying to any source which would constitute hearsay, unless and until the fact relied upon first is independently proven by competent evidence or is admissible as an exception to the hearsay rule." (Motion, at 3.)

Plaintiff's position: Defendants' motion fails to acknowledge that medical records routinely relied upon by medical experts are admissible under the business records exception to the hearsay rule. In *Conservatorship of S.A.*, the court held that an expert witness may rely on hearsay in forming an opinion and may tell the jury in general terms that she did so but may not relate as true case-specific facts asserted in hearsay statements, unless they are independently proven by competent evidence or are covered by a hearsay exception. In *Conservatorship of S.A.*, (2018)25 Cal. App. 5th 438, the court specifically found that case-specific hearsay related by the expert came from medical records that qualified for admission under the business records exception to the hearsay rule.

RULING: DENIED, in part, GRANTED in part. The motion in limine does not identify particular evidence to be excluded and so cannot be granted. (*Kelly v. New West Federal Savings* (1996) 49 Cal. App. 4th 659).

The motion is granted inasmuch as the Court will apply *Sanchez*. The Court notes that just because a document is identified as a "medical record" does not automatically qualify it as a business record. Furthermore, even where a document is admissible under Evidence Code Section 1271 does not mean that all statements contained within the document are necessarily admissible.